

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
Case No. CV-2025-0929

Hearing Date: **January 8, 2026** **Department Eleven** **9:00 a.m.**

Based on the supplemental declaration Eric F. Della Santa filed on December 23, 2025, including the exhibits attached thereto, the Court is satisfied that the subpoenas at issue in plaintiff Nadir Malik’s motion to quash subpoenas to third parties have been withdrawn; thus, plaintiff’s motion is **DENIED AS MOOT**. (Della Santa Sup. Decl., ¶¶ 2 – 5, Exhibits A – C.)

Plaintiff’s request for the issuance of a protective order requiring defendant to seek Court approval before contacting third parties, and plaintiff’s request for the imposition of judicial oversight on all further discovery are **DENIED** as no legal authority was provided in support of the requested relief. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Nonetheless, the Court may not provide prospective relief. (See *Alliance San Diego v. California Taxpayers Action Network* (2025) 114 Cal.App.5th 1121, 1135 [“Ripeness is a doctrine that applies to prevent courts from issuing purely advisory opinions or resolving abstract differences of opinion.”].)

Defendant Flagstar Bank, N.A.’s request for sanctions is **GRANTED IN PART** in the amount of **\$2,070.00**. (Code Civ. Proc., §§ 2023.010, 2023.030; Della Santa Decl., ¶ 5.) The Court declines to award sanctions for time not yet incurred. (*Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1563 [“...the use of the past tense - “incurred - in section 2023.030 suggests the individual seeking sanctions must have already become liable for those expenses before those expenses can be awarded as sanctions.”].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sandoval et al. v. Yolo Co. Dept. of Health & Human Services
et al.**

Case No. CV-2023-2085

Hearing Date: **January 8, 2026** **Department Eleven** **9:00 a.m.**

Defendant Yolo County's motion to remove plaintiff Amy Sandoval as guardian ad litem and appoint successor guardian ad litem is **DENIED**. (See *Estate of Emery* (1962) 199 Cal.App.2d 22, 26.) The Court finds that defendant fails to show that Ms. Sandoval has any potential or an actual conflict of interest warranting removal. (Civil Code, § 373, subd. (c); see *Ibid.*; *Estate of Lacy* (1975) 54 Cal.App.3d 172, 185; *Golin v. Allenby* (2010) 190 Cal.App.4th 616, 644; see also *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) The Court finds that the case of *Williams v. Superior Court* (2007) 147 Cal.App.4th 36, cited by defendant is distinguishable because in that case there was an admission that a potential conflict of interest existed and was not the issue before the court.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.